

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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ANTHONY MARTIN,

Plaintiff

- against -

**THE CITY OF NEW YORK,
P.O. MATTHEW JENDZO
P.O. MICHAEL LYNCH**

Defendant.

-----X

Index No. _____
Purchased _____
**Plaintiff designates The Bronx
County as the place of trial**

**The basis of the venue is
where the tort arose**

SUMMONS

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
July 1, 2023



MARTINDALE & ASSOCIATES, PLLC
By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, New York 10017
(212)405-2233

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

OFFICER MATTHEW JENDZO

101st Precinct

16-12 Mott Ave

Far Rockaway, NY 11691

OFFICER MICHAEL LYNCH

101st Precinct

16-12 Mott Ave

Far Rockaway, NY 11691

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY**

=====X
ANTHONY MARTIN

Plaintiff,

**Index No.
Verified Complaint**

- against -

**THE CITY OF NEW YORK,
P.O. PHILIP JENDZO
P.O. MICHAEL LYNCH**

Defendant.

=====X

Plaintiff ANTHONY MARTIN, by his attorneys MARTINDALE &
ASSOCIATES, PLLC, by CONWAY C. MARTINDALE II, principal, complaining of
the Defendant, respectfully shows to this Court and alleges the following upon
information and belief:

PARTIES

1. At all times relevant herein, Defendant THE CITY OF NEW YORK (hereinafter
“CITY”), was and still is a municipal corporation organized and existing under
and by virtue of the laws of the State of New York.

2. Upon information and belief, all New York Police Department (hereinafter "NYPD") officers, including P.O. Philip Jendzo (hereinafter "JENDZO") and P.O. Michael Lynch, mentioned herein were, at the time of the occurrence, police officers of Defendant CITY, and at all times herein were acting in such capacity as the agents, servants, and employees of the defendant CITY.
3. At all times relevant herein, Plaintiff ANTHONY MARTIN (hereinafter "MARTIN") is a citizen of the United States and a resident of Queens County in the City and State of New York.

PROCEDURAL POSTURE

4. Within 90 days after the incident, which occurred at approximately 9:30pm on September 3, 2021, in and around the corner of Beach 54th Street and Beach Channel Avenue, Far Rockaway, New York, Plaintiff served a Notice of Claim in writing sworn to on his behalf upon the Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant CITY of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
5. At least thirty days have elapsed since the service of the claim prior to the commencement of this action and adjustment of payment thereof has been neglected or refused, and this action has been commenced within one year and ninety days after the happening of the event upon which the claims are based.
6. A 50-H hearing has been held.

7. The Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FACTS

8. Paragraphs 1-7 are incorporated by reference as fully set forth herein.
9. In the evening of September 3, 2021, at approximately 9:30pm, MARTIN was heading to his local neighborhood bodega on foot to purchase a soda.
10. As MARTIN was walking towards the corner of Beach 54th Street and Beach Channel Avenue, he encountered multiple uniformed NYPD officers, including JENDZO and LYNCH.
11. The NYPD officers asked MARTIN his name, which he provided.
12. Once MARTIN provided his name to the NYPD officers, he was grabbed on his right arm and pushed to the ground by JENDZO.
13. Once MARTIN was on the ground, he was punched in the face multiple times by LYNCH, causing black and blue bruising around his right eye and loss of consciousness.
14. In addition, while MARTIN was on the ground, the NYPD officers, including JENDZO, put their knee in MARTIN's back causing extreme pain and difficulty breathing.
15. After losing consciousness, MARTIN woke up handcuffed in St. John's Hospital emergency room located in Far Rockaway.
16. After being x-rayed and receiving confirmation that the x-rays were negative, MARTIN was released from the hospital, no longer in police custody.

17. Feeling sorry for how the NYPD officers who responded to the scene (including JENDZO and LYNCH) handled the situation, an unknown sergeant from the 101st Precinct gave MARTIN a ride home.
18. Upon the advice of counsel, MARTIN contacted the Civilian Complaint Review Board.
19. MARTIN was eventually interviewed by the CCRB and recited the above events to the assigned investigator.
20. MARTIN received the investigation results in a letter from the CCRB dated December 7, 2022 .
21. Use of unreasonable force was substantiated against JENDZO.
22. Use of unreasonable force was undetermined regarding LYNCH.
23. MARTIN sustained physical as well as psychological and emotional trauma due to the aforementioned events.
24. MARTIN sees a therapist as a result of the aforementioned events.

**AS AND FOR A FIRST 1983 CAUSE OF ACTION FOR
MALICIOUS PROSECUTION AS AGAINST ALL DEFENDANTS IN
VIOLATION OF
PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS**

25. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.
26. Plaintiff sues all Defendants in their capacities.

27. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and malicious prosecution were all carried out without a warrant or probable cause and with malice.

28. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff.

29. Prior to September 3, 2021, NYC and the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of NYC to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY.

30. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the respondent officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests.

31. The respondents' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convince at the expense of others.

32. The above actions of the arresting officers caused the Plaintiff to be deprived of the following rights under the United States Constitution:

- (a) Freedom from assault to his person,
- (b) Freedom from battery to his person,
- (c) Freedom from illegal search and seizure,
- (d) Freedom from false arrest,
- (e) Freedom from malicious prosecution,
- (f) Freedom from the use of excessive force during the arrest process.

33. The arresting officers subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights under the Fourth and Fourteenth Amendments of the United States Constitution.

34. The direct and proximate result of the officers' acts are that the Plaintiff has suffered severe and permanent psychological injuries. Plaintiff was forced to endure pain and suffering to his detriment.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING
AND SUPERVISION**

35. Plaintiff repeats and re-alleges each and every allegation above as if set forth at length herein.

36. Prior to on or about September 3, 2021, Defendant NYC knew or should have known Defendants JENDZO and LYNCH to be unruly and to verbally threaten and to harass other human beings and to make unlawful arrests.

37. That defendant NYC negligently hired and trained JENDZO and LYNCH, negligently failed to supervise or discharge them from their employ, thereby causing and contributing to the above stated incident.

38. Plaintiff was caused to sustain serious injuries, caused to suffer pain, offense, shock and mental anguish; that these injuries and their effects will be permanent; Plaintiff was and will continue to be rendered unable to perform his normal activities and duties having sustained a resultant loss there from.

**AS AND FOR A THIRD CAUSE OF ACTION
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

39. MARTIN repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein

40. The Defendants, and each of them, acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, malicious prosecution, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of MARTIN.

41. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against the MARTIN without any further investigation of the incident. Defendants knew or had reasons to know that the criminal charges against MARTIN were false or without merit, yet that they detained and prosecuted MARTIN with the intention of causing further harm and duress to MARTIN.

42. Defendants knew that their conduct would cause severe and extreme emotional harm to the MARTIN and injury to his good name and reputation.

43. Said harm did in fact occur in this case, in that MARTIN was debilitated to the point where he still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

44. By reason of the foregoing, MARTIN sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

45. MARTIN repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

46. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for MARTIN well-being, and were based on a lack of concern and ill-will towards MARTIN.

47. MARTIN therefore demands punitive damages in the amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff ANTHONY MARTIN demands judgment against the Defendant in the sum of \$10,000,000, together with the costs and disbursements of this action as well as any other additional relief this Court deems just and proper.

Dated: New York, New York

July 1, 2023

Yours, etc.

MARTINDALE & ASSOCIATES, PLLC

By: Conway C. Martindale II
Attorneys for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212)405-2233

VERIFICATION

The undersigned, the Plaintiff in this action, affirms under the penalties of perjury:

That deponent is the plaintiff in the within action; that deponent has read the foregoing **VERIFIED SUMMONS AND COMPLAINT** and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters, deponent believes those to be true.

The grounds for deponent's belief as to all matters not stated upon his knowledge are investigations which his attorney has made or has caused to be made concerning the subject matter of this action, and statements of parties or witnesses herein.

Dated: New York, New York
July 1, 2023

DocuSigned by:
A Martin
83CCEFA0B5FA478

ANTHONY MARTIN

Subscribed and sworn to before me, this 1st day of July 2023

Notary Public

CONWAY C MARTINDALE II
NOTARY PUBLIC, STATE OF NEW YORK
Registration No. 02MA6383802
Qualified in New York County
My Commission Expires: 5/24/27

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COUNTY OF THE BRONX**

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Plaintiff,

-against-

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P.O. PHILIP JENDZO
P.O. MICHAEL LYNCH**

Defendant.

SUMMONS & COMPLAINT

Martindale & Associates, PLLC
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**TO: CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
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New York, New York 10007

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16-12 Mott Ave
Far Rockaway, NY 11691

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